VANCOUVER PUBLIC SCHOOLS

VPS

Legal Department

Notice

Updates to the following attached procedures have been approved by Superintendent, Jeff Snell, and are scheduled to be posted June 27, 2025 online at www.vansd.org

- Procedure 2020, Course Design, Selection and Adoption of Instructional Materials
- Procedure 2021, Library Information and Technology Programs
- Procedure 2022, Electronic Resources and Internet Safety
- Procedure 5010, Nondiscrimination and Affirmative Action
- Procedure 6801, Capital Assets / Theft Sensitive Assets

(DRAFT 06-06-25)

Procedure – Course Design, Selection and Adoption of Instructional Materials

The School Board recognizes its responsibility for the improvement and growth of educational programs in our district. RCW 28A.320.230 provides the statutory authority for the School Board in the adoption of instructional materials. The primary objective in selecting instructional materials is to implement, enrich, and support the educational program of our schools. Instructional materials shall be selected to ensure alignment with learning standards and enable all students to master the foundational skills and knowledge needed to be prepared for college, career and community. As applicable to the given course, instructional materials adopted by the School Board shall be used by teachers for instruction. The provision of instructional materials will be done in an equitable manner.

I. Definitions

For the purpose of this procedure, the definitions from Policy 2020 will apply.

A. "Course" is defined as the program of instruction for Preschool through 12th grade students.

B. "Course design" is the process that includes identifying and sequencing essential content supporting student's skill development towards state learning standards. Course design involves providing appropriate instructional materials, professional development, and support systems for teachers as they implement the course.

C. "Curriculum" is defined as the learning standards that the teachers and specialists (e.g., counselors) teach; adopted instructional materials (core and supplemental), scope and sequence, presentations, activities, assignments, projects provided for students, and assessments and other methods to evaluate learning.

D. "Instructional materials" are all materials designed for use by students and their teachers/specialists as learning resources to support the curriculum and help students acquire facts, skills, and/or to develop cognitive processes. These instructional materials, used to help students meet s~~S~~tate or d~~D~~istrict learning standards, may be printed or digital, and may include textbooks, technology-based materials, other educational media, and assessments. They ~~-~~may carry different ~~licensing types~~types of licensing, from open to all rights reserved. For the purposes of this ~~policy~~procedure, the s~~S~~chool b~~B~~oard recognizes the following categories of instructional materials:

1. "Core instructional materials" are the primary instructional resources for a given course or program. They are board adopted and provided to all students to help meet learning standards and provide instruction toward course requirements.

2. "Supplemental instructional materials" are used in conjunction with the core instructional materials of a course. These items extend and support instruction. They are district approved and include, but are not limited to, books, periodicals, visual aids, video, sound recordings, computer software and other digital content. These materials are intended to supplement core materials and may be used for specialized course offerings, differentiation, or flexible learning environments.~~are used in conjunction with the core instructional materials to provide instruction in established learning standards or statutory~~

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~~requirements that are not fully addressed by, or absent from, the core instructional materials. They are board adopted and may be used for specialized course offerings, differentiation, or flexible learning environments.~~

3. "Temporary instructional materials" are items used in conjunction with the core instructional materials of a course that are of interest or value for a short period of time and are chosen within district established guidelines. They are not intended to supplant the adopted curriculum nor be used on a regular instructional basis. Examples include timely articles from relevant, reliable sources, websites, or news broadcasts. The use of temporary supplemental materials **for time periods of over one (1) year** requires consideration of the material as either part of the core instructional material for a course or supplemental material for the course and will need to go through the approval process.

4. "Approved reading materials" are novels, short stories, picture books (that contain potentially challenging content), magazines, and/or poetry anthologies identified by certificated instructional staff and approved for use following the IMC process.

   Materials **not** requiring approval include reading materials students self-select for independent reading (school library and classroom) and picture books that do not contain potentially challenging content.

E. "Open educational resources (OERs)" are teaching and learning materials in the public domain or released under an open license that permits their free use, adaptation, and sharing. OER can be produced in any medium - digital or print. They include full courses, supplemental units and lessons, videos, and any other resource used to support access to knowledge. OER's are intended to be used as supplements to the core curriculum. Guidelines for use are listed in section III below.

F. "Technology-based resources/digital applications" are technology based materials, for which district educational technology staff should be involved early in selecting and adopting core instructional materials and in developing policy regarding selecting digital supplemental materials. Key considerations include evaluating district technological impacts, ensuring compliance with student privacy and data protection laws and promoting equitable access for students and teachers. ~~consulted regarding the technological impacts of the suggested program/application. Equity of access for students and teachers must be considered for all core materials delivered in digital formats.~~ *The term* ***Digital Learning Resources (DLRs)*** *refers to digital resources such as applications (apps), software, programs, or websites that engage students in learning activities and support students' learning goals.*

G. "Digital learning" refers to any instructional practice that effectively uses technology to strengthen a student's learning experience and encompasses a wide spectrum of tools and practices. This includes:

   1. Interactive learning resources, digital learning content (which may include openly licensed content), software, or simulations that engage students in academic content;

   2. Access to online databases and other primary source documents;

   3. The use of data and information to personalize learning and provide targeted supplementary instruction;

   4. Online and computer-based assessments;

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5. Learning environments that allow for rich collaboration and communication, which may include student collaboration with content experts and peers;

6. Hybrid or blended learning which occurs under direct instructor supervision at a school or other location away from home and, at least in part, through online delivery of instruction with some element of student control over time, place, path, or pace.

H. "Adoption committee" is the body convened to evaluate instructional materials for each core instructional materials adoption and is formed to establish and monitor such procedures as may be necessary for the evaluation and recommendation for adoption of all c~~C~~ore i~~I~~nstructional materials used by the district in conformance to stated criteria. The adoption committee makes recommendations to the instructional materials committee for the adoption of core instructional materials. A different adoption committee is formed for each core instructional materials adoption. The d~~D~~irector(s) and curriculum specialists of i~~I~~nstructional p~~P~~rograms will be permanent members of the committee.

I. "Instructional materials committee (IMC)" oversees the approval of reading materials and supplemental curriculum for the district. The IMC also considers recommendations from the adoption committee, and makes recommendations to the b~~B~~oard, regarding core instructional materials. Unlike adoption committees that are only active for a specific adoption and vary for each adoption, the IMC is always a staffed committee of the district.

II. Course Design and Review:

District course design and core instructional materials should be regularly reviewed to ensure their ongoing alignment with state law, teaching and learning standards, and research-based best practices. All students will receive high quality core instruction and, as appropriate, strategic and intensive intervention support matched to student needs.

A. Process for new course approvals:

1. New course offerings or major course modifications that propose significant changes to course objectives or scope will be reviewed by the superintendent or designee prior to being scheduled to ensure that the course is rigorous, utilizes appropriate instructional materials, and is a carefully considered part of the school's college and career pathways, and with respect to the district's equity lens; and

2. When the implementation of new or modified courses requires the adoption of new instructional resources, those resource recommendations will be forwarded to the ~~instructional materials committee~~IMC for consideration by the process outlined below.

B. Review of existing courses:

1. The superintendent or designee will establish a regular cycle of course review that includes examination by review committees composed of district subject area coordinators and, as appropriate, external content area experts. This review cycle should be based on student need, changing demographics, funding, and alignment with instructional framework. The cycle should cover each content area to ensure current course relevance.

2. If buildings would like to offer an approved course that is not currently on their schedule,

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they will need to fill out an Approved Course Proposal Request and send to the appropriate content area teacher on special assignment (TOSA) who will initiate review of the existing course process.

3. The course design process should review

   a) Relevance, rigor, and alignment to state academic learning standards, and alignment to Vancouver Public Schools' instructional framework;

   b) Efficacy of core, supplemental, and intervention instructional materials that support student learning;

   c) Processes and resources used to assess student progress and address teacher professional learning; and

   d) Application of the district's equity lens.

4. Recommendations of this review may lead to:

   a) Affirmation of continued use of current processes and instructional materials;

   b) Establishment of a timeline for completion of recommended tasks;

   c) Creation and assignment of tasks to subcommittees as required to select, write, or revise the course design;

   d) Recommendation of new instructional materials selection to the instructional materials committee;

   e) Design of course implementation and staff development plans;

   f) Identification of projected budget needs in accordance with established timelines; and/or;

   g) Maintained communications with impacted stakeholders.

III. Curriculum Review and Adoption

A. Adoption committee

1. The adoption committee is the body that evaluates instructional materials for each core instructional materials adoption and is formed to establish and monitor such procedures as may be necessary for the evaluation and recommendation for adoption of all c~~C~~ore and s~~S~~upplemental i~~I~~nstructional materials used by the district in conformance to stated criteria. The committee will act upon requests for instructional materials approval and will evaluate and act upon requests for consideration of instructional materials through the use of the district pilot and adoption process.

2. Adoption committee meetings will be held on a schedule determined by the director(s) of instructional programs. Special meetings may be called if necessary.

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3. The adoption committee will consist of certificated staff representing building administrators, teachers, counselors, directors and curriculum specialists from instructional programs, and coordinators and directors from teaching and learning. The adoption committee will include parents, but state law provides that parents must make up less than one-half the committee (RCW 28A.320.230). Members will be appointed by the superintendent or designee through the district's committee selection process. A different adoption committee is formed for each instructional materials adoption. The director(s) and curriculum specialists of i~~I~~nstructional p~~P~~rograms will be permanent members of the committee.

B. Instructional materials committee

1. It is the policy of the Vancouver Public Schools Board of Directors to create an instructional materials committee (IMC), pursuant to RCW 28A.320.230, to oversee the approval of reading materials and supplemental curriculum for the district.

2. IMC meetings will be held on a schedule determined by the district. Special meetings may be called by the committee chairman if necessary. The committee secretary will provide building staff (principal, teacher-librarian, and other appropriate staff) and IMC members with copies of the committee meeting schedule.

3. ~~The~~ In alignment with RCW 28A.320.230, the IMC will include the following:~~consist of~~:

   a) Director of curriculum and instruction (chair);

   b) Executive director(s) of teaching and learning;

   c) Curriculum program specialist (secretary);

   d) Appropriate curriculum and instruction staff;

   e) Two teachers from each level (elementary, middle, and high);

   f) Two teacher-librarians from elementary and secondary levels;

   g) Representative(s) from additional district departments as appropriate; and

   h) One or more parents of enrolled students, ensuring that each parent members make up less than half of the committee's total membership.~~.~~

~~g)~~ 4. The district will provide parents with reasonable notice of the opportunity to serve on the IMC and the terms of office for members. The district will also develop and implement a comprehensive outreach program to recruit a diverse pool of parent members that reflects the district's demographics and learning needs to the greatest extent possible. If the IMC cannot recruit at least one parent, it must report quarterly to the board and the public about its recruitment efforts.

~~4~~5. Members will be appointed by the superintendent or designee through the district's committee process. The Vancouver Education Association and district will collaborate to identify members in response to a request from the IMC chairperson. The chairperson and the secretary will be permanent members of the committee. Other members will have three

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(3) year terms. Temporary appointments of one (1) year or less may be made to fill vacancies.

C. Selection and adoption of instructional materials

For the purposes of this procedure, instructional materials used in the school district will be classified as core and supplemental., and They shall be selected according to the following procedures that follow. The principal is responsible for ensuring their certificated staff is familiar with this procedure continuing familiarity of the certificated staff with the requirement of this policy and procedure. The district office will provide the such technical assistance as may be necessary to accomplish this. Core and supplemental instructional materials will be approved by the board prior to their use in the classroom.

1. Identification of core and supplemental instructional materials. Core and supplemental materials shall be initially selected by such certificated staff as the superintendent or designee may assign.

2. Core and supplemental instructional materials shall be selected based upon the degree to which they:

   a) Demonstrate likelihoodthe likelihood of impact as shown by scientific or evidence-based research;

   b) Enable implementation of the district's developed curriculum and meet state academic standards and college and career readiness requirements;

   c) Provide sufficient flexibility to meet the varied needs and abilities of the students served;

   d) Provide clear and appropriate differentiation components for English language learners, special education students, students with academic opportunity gaps, and highly capable students;

   e) Where appropriate, present balanced but differing views of issues, controversial or otherwise, in order that students may develop critical analysis and informed decision-making skills;

   f) Demonstrate considerations of appropriate format(s) (including technological, visual, and/or auditory components);

   g) Support equitable access to learning and high-quality accessible instructional materials for all students;

   h) Eliminate, in all instructional materials, bias pertaining to sex (gender), race, creed, color, religion, ancestry, national origin, age, economic status, sexual orientation, gender expression or identity, pregnancy, marital status, physical appearance, disability, honorably discharged veteran or military status, or the use of a trained dog guide or service animal by a person with a disability;

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~~g)~~i) Are free of stereotyping and other forms of bias, recognizing that under certain circumstances, biased materials may serve as appropriate resources to present contrasting and differing points of view, and biased materials may be employed to teach students about bias, stereotyping, and propaganda in historical or contemporary contexts. The Washington model resource, Screening for Biased Content in Instructional Materials, published by OSPI, should be consulted when selecting non-biased materials.

j~~i~~) Recognize that under certain circumstances biased materials may serve as appropriate resources to present contrasting and differing points of view and biased materials may be employed in order to teach students about bias, stereotyping, and propaganda in historical or contemporary contexts;

k~~j~~) Represent the diversity of students and contribute to the development of understanding issues of gender, ethnic, cultural, occupational, and religious groups;

l~~k~~) Include in United States history, social studies, and language arts instructional materials, and reasonably include in other instructional materials, significant events, perspectives, societal contributions, and/or positive representations of American Indian, African American, Latino, Asian American, and LGBTQIA+ individuals and persons with disabilities.

3. Identification of temporary supplemental materials

a) Professional staff of the district will rely on reason and professional judgment in the selection of high quality temporary supplemental materials that are appropriate for the instructional program and developmental level and interests of their students;

b) Temporary supplemental materials are items used in conjunction with the core instructional materials of a course that are of interest or value for a short period of time and are chosen within district-established guidelines; and

c) The use of temporary supplemental materials for **time periods of over one (1) year** require consideration of the material as either part of the core instructional program for a course or supplemental material for the course depending on the nature and scope of the material.

D. Recommendation of core instructional materials

1. Completed core approval forms are submitted to curriculum and instruction;

2. At the beginning of an adoption process, the curriculum and instruction team will develop selection criteria, a community/staff engagement plan, and a proposed timeline for the adoption;

3. The curriculum and instruction team will form an adoption committee to proceed with the adoption review process;

4. Core material will be reviewed according to superintendent-established procedures to ensure compliance with the above selection criteria and by using appropriate instructional material evaluation tools;

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5. At the conclusion of the selection process, the adoption committee will determine a final selection and provide their selection to the IMC, accompanied by an affirmation that all required processes were adhered to, and a cost analysis of the entire instructional materials adoption; ~~and~~

6. Based on their review, the IMC will recommend instructional materials to the board for adoption;

7. As outlined in RCW 28A.320.230, recommendations must include culturally and experientially representative instructional materials including materials on the study of the role of contributions of individuals or groups that are part of a protected class under RCW 28A.64.010 and 28A.640.010, but the board will ultimately decide what instructional materials are used; and

8. In accordance with RCW 28A.320.233, the board cannot refuse to approve or prohibit any instructional materials for student instruction because they relate to or include the study of the role and contributions of any individual or group who is part of a protected class as established by RCW 28A.642.210 and 28A.640.010.~~.~~

E. Recommendation of supplemental instructional materials:

1. Completed supplemental approval forms are submitted to curriculum and instruction. Digital supplemental curriculum will be submitted through the digital approval request platform and follow the same procedure;

2. Forms are reviewed by curriculum and instruction and provided to the IMC for further review; and

3. Based on their evaluation, the IMC will recommend supplemental instructional materials to the board for approval.

F. Reading materials approvals

Reading materials requiring approval include: novels, short stories, picture books (that contain potentially challenging content), magazines, and/or poetry anthologies. Materials **not** requiring approval include reading materials students self-select for independent reading (school library and classroom).

1. Completed reading material approval forms are submitted to curriculum and instruction;

2. Forms are reviewed by curriculum and instruction and the appropriate sub-committee;

3. Completed forms/reading material is presented to the IMC for questions and review; and

4. Based on their evaluation, the IMC will recommend the reading materials to the board for adoption.

IV. Additional Instructional Materials Guidance

A. Open educational resources (OERs)

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1. OERs can be used as a temporary supplemental resource for **up to one year**;

2. After one year, the OER must be submitted for approval as a supplemental resource using the process outlined above; and

3. ~~3.~~ For special circumstances, OERs used as a core instructional resource will be brought forward for approval to the IMC.

~~3.~~4. Supplemental instructional materials may be found on OSPI's Washington OER hub.

B. Technology Based Resources

As new technologies rapidly evolve, district educational technology staff should be involved early in selecting and adopting core instructional materials and in developing policy regarding selecting digital supplemental materials. Key considerations include evaluating district technological impacts, ensuring compliance with student privacy and data protection laws, and promoting equitable access for students and teachers.

C~~B~~. Exceptional needs or rapidly changing circumstances

The superintendent or designee may authorize the acquisition of alternative core instructional materials to meet exceptional needs or rapidly changing circumstances. However, expanded use of core instructional materials selected for exceptional needs will require adoption through the formal process.

D~~C~~. Dual credit programs.~~College in the High School, Advanced Placement (AP), and/or International Baccalaureate (IB)~~

These courses may have varying course designs and redesigns as necessitated by their course credit transfer requirements, but will still follow the above approval process.

E. Field testing

The superintendent or designee may consider using field testing as part of the adoption process. Field testing can provide a flexible opportunity to investigate the effectiveness of curricular approaches, instructional materials or assessment resources through careful experimentation for an identified purpose based on student need. The superintendent may authorize trial-use cored instructional material that is experimental and field tested for no more than one school year before the materials must be adopted through the formal process.

F~~D~~. Social studies curriculum review or adoption

1. In compliance with RCW 28A.320.170, when the board adopts or reviews the district's social studies ~~curriculum~~course design, it will incorporate the history, culture and government of the nearest federally recognized Indian tribe or tribes utilizing curriculum available on the OSPI website. The district may modify the OSPI curriculum to incorporate elements that have a regionally specific focus or may incorporate the curriculum into existing instructional materials.

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2. ~~2.~~ During regularly scheduled review and revisions of their social studies and history curriculum thereafter, the district will collaborate with any federally recognized Indian tribe or tribes using the John McCoy (lulilas) Since Time Immemorial: Tribal Sovereignty in Washington State instructional materials on the Office of the Superintendent of Public Instruction (OSPI) website. The district may adapt these resources for regional relevance or integrate them into existing instructional materials.~~within its boundaries and with neighboring Indian tribes to expand and improve instructional material about Indian tribes and to create programs of classroom and community cultural exchange.~~

3. During regularly scheduled reviews and revisions of its social studies and history courses, the district will collaborate with any federally recognized tribe within or near its boundaries to incorporate expanded and improved instructional materials about Indian tribes and create classroom and community cultural exchange programs. OSPI's Office of Native Education will help identify federally recognized Indian tribes whose reservations are in whole or in part within the district's boundaries and those nearest to the district.

4. ~~3.~~ The district will collaborate with OSPI ~~the Office of the Superintendent of Public Instruction (OSPI)~~ on ~~curricular~~ areas regarding tribal government and history that are statewide in nature, such as the concept of tribal sovereignty and the history of federal policy and towards federally recognized Indian tribes.~~.~~

G. Inclusive instructional materials

1. In compliance with RCW 28A.345.130, the board, within available materials, must adopt inclusive curricula and select diverse, inclusive, age-appropriate instructional materials that include the histories, contributions, and perspectives of historically marginalized and underrepresented groups including, but not limited to, people from various racial, ethnic, and religious backgrounds, people with differing learning needs, people with disabilities, LGBTQ people as defined in RCW 43.114.010, and people with various socioeconomic and immigration backgrounds.

2. In adopting curricula and selecting instructional materials, the board must seek curricula and instructional materials that are culturally and experientially diverse as possible, recognizing that the availability of materials that include the histories, contributions, and perspectives of historically marginalized and underrepresented groups may vary.

H~~E~~. Requests for digital applications

All requests for digital applications must be submitted using the VPS digital product request process and form. This process **is not** intended for applications that would be considered supplemental curricular resources. All supplemental curriculum must go through the IMC a~~A~~pproval p~~P~~rocess.

I~~F~~. Supplemental materials provided by educational and community partners

The district values its relationship with local and national community educational partners. At times, partners offer supplemental instructional materials to individual schools. Prior to use, all supplemental materials must be reviewed to ensure alignment with and support of state objective

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targets, frameworks, and district student learning goals. Additionally, supplemental materials must contain relevant content, literary quality, and adequately and accurately reflect various viewpoints. This procedure applies to any local or national partner desiring to provide supplemental curriculum and instructional materials for use by a school.

1. Approval process for supplemental materials provided by community partners

    a) When presented with proposed supplemental materials by an outside organization, including an educational or community partner, the building administrator will submit the materials to the director of curriculum and instruction for review;

    b) The director of curriculum and instruction will review the proposed supplemental materials with the IMC;

    c) The IMC will consider the criteria in Section 2 (below) when reviewing the materials; and

    d) The IMC will approve or reject the curriculum and make a recommendation to the school board to either approve or approve with conditions.

2. Criteria for approval of supplemental materials provided by community partners

    a) Presenting information in a style and perspective that is culturally responsive, appropriate and easily understood by most students;

    b) Appropriate for use in the heterogeneous classroom setting to accommodate the full range of student needs, including but not limited to students who are high achieving, students with special needs, and students who are multilingual English learners;

    c) The best option compared to other materials that can provide the same or similar educational experience; and

    d) Input from staff at buildings concerning how well the supplemental instructional materials meet content needs and possess qualities of literary educational merit, are aligned with the curriculum, and incorporate or foster appropriate student engagement in learning.

J~~G~~. Conflict of interest

1. To avoid potential conflict of interest that could bring the credibility of supplemental instructional selections into ~~questions~~question, persons involved in the selection process and/or connected with the recommendation may not participate in activities sponsored solely by publishers, producers, or vendors or supplemental instructional materials that could be construed as being outside of the channels of normal communication and information gathering.

2. Examples of such activities might be:

    a) Workshops or seminars when offered as extended or overnight activities and/or in locations that exceed regular working environments and conditions;

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b) Events strictly for social rather than informational purposes that are paid for by publishers, producers, or vendors of instructional materials;

c) The accepting of personal gifts or gratuities that exceed a value of Fifty Dollars ($50.00) from publishers, producers, or vendors of instructional materials; and

d) Participation in informational activities with regard to published materials at which a meal is provided shall be acceptable if the meal is incorporated as an integral part of the workshop or seminar session, and/or if the cost of the meal is underwritten by the participant or the school district.

K~~H~~. Protest procedure ~~for instructional materials~~

1. Core instructional materials

In accordance with RCW 28A.320.230, the process for receiving, considering, and acting upon complaints regarding the district's core instructional materials is described below:

a) Submitting a complaint: A parent may submit a written complaint about core instructional materials to the principal of the school where the materials are being used.

b) Seeking resolution: If the parent requests, the school will arrange a meeting with the parent, the principal, and a teacher using the materials in question to address the parent's concerns and find solutions.

c) Committee review: If the issue cannot be resolved at the school level, the IMC will provide a written decision. The decision must be issued within sixty (60) days of the meeting between the parent or within ninety (90) days of receiving the complaint, whichever is later.

d) Appeal process: The parent, a teacher using the reviewed materials, or the principal may appeal the IMC's decision by submitting a written request to the superintendent or designee, the superintendent's or designee's decision is final and cannot be appealed. Once a final decision is made, the same materials may not be reconsidered for at least three (3) years unless the superintendent determines a significant change in circumstances has arisen.

2. Requests for review and removal of supplemental instructional materials

a) Request for review: A parent may submit a written request to review and remove supplemental instructional materials to the applicable teacher and principal.

b) Seeking resolution: If the parent requests, the school will arrange a meeting with the parent, the principal, and the teacher to address the parent's concerns and find solutions.

c) Principal's decision: If the issue cannot be resolved, the principal, in consultation with a teacher-librarian, will review the materials and issue a written decision on whether to remove them. The decision must be issued within thirty (30) days of

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meeting with the parent or withing sixty (60) days of receiving the complaint if the parent doesn't request a meeting.

d) Appeal process: If the parent or teacher disagrees with the principal's decision, they may appeal to the superintendent or designee in writing. The superintendent's or designee's decision is final and cannot be appealed. Once a final decision is made, the same materials may not be considered for at least three (3) years unless the superintendent determines a significant change in circumstances arises.

~~1. When a parent/guardian or employee challenges any instructional materials used or restricted from use in the schools, the following steps should be taken:~~

~~a) Concerns should first be discussed with the certificated teacher and/or the school principal. All parties are urged to resolve the concern at this level; and~~

~~b) If the concerns cannot be resolved through discussion at the school level, the following steps will be taken and **the challenged instructional material will continue to be used until a decision is rendered**:~~

~~(1) If the challenged instructional material is supplemental in nature, at a parent/guardian's written request to the principal, the supplemental material may be asked to be withdrawn from their student. The principal shall facilitate a meeting of the complainant(s) and appropriate school staff. Following the meeting, the principal shall respond with a written decision; and~~

~~(2) If warranted by the scope of the supplemental material (approved for wider district use) or the material is core, the parent/guardian or employee may register a request for reconsideration with the superintendent or designee. This request will be forwarded to the instructional materials review committee. The IMC will review the complaint and establish a timely process for consideration of the complaint, if appropriate.~~

~~2. All instructional material reconsideration decisions will be by majority vote of the IMC and are final. Decisions of the committee will be delivered in writing to the superintendent, complainant, and affected staff within ten (10) school business days.~~

V. Guidelines for Use of Instructional Materials

A. Art supplies safety

1. The board recognizes the arts help transform the school environment to one of discovery and learning, while further acknowledging that the value art brings must be balanced with the safety of students and staff;

2. The board additionally recognizes its responsibility to protect the health and safety of students in the selection of materials used for instruction in art activities;

3. Art materials which contain toxic substances or cause chronic illness are prohibited;

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4. All art materials purchased by the district will have, if available, corresponding material safety data sheets (MSDS) containing safety information about materials including physical, chemical and toxicological properties, regulatory information, and recommendations to ensure safe handling; and

5. If the purchase of art materials containing toxic substances is considered essential for a particular activity due to the lack of a suitable non-toxic alternative, the teacher shall get written approval from the building principal **prior** to using the toxic materials. Prior to granting approval, the principal will submit the request to the district safety officer for review and approval.

VI. Guidelines for Using Films and Videos

A. A film or video selection must meet the following criteria as well as grade-level guidelines below:

1. Does it enrich and support the curriculum? Does it align to standards?

2. Does it stimulate growth in factual knowledge, aesthetic values, or ethical standards?

3. If applicable, does it present opposing sides of controversial issues so that young citizens may develop, under guidance, the practice of critical viewing and thinking?

B. Elementary

1. Films and videos with a film industry rating of G may be used in district elementary classrooms without parent/guardian/custodian notification; and

2. Use of PG rated videos: Normally PG rated material will not be used; however, if the film or video is appropriate to the curriculum and the principal approves, such material may be shown. Vancouver Public Schools parent consent forms must be issued to each student, signed by the parent/guardian/custodian, and returned to school prior to the classroom showing of any PG rated film or video. Students without parental/guardian/custodian permission must be provided alternative assignments.

C. Middle School

1. Films and videos with a film industry rating of G or PG, may be used in district middle school classrooms without parent/guardian/custodian notification; and

2. Use of PG 13 Rated Videos: Normally PG 13 rated material will not be used; however, if the film or video is appropriate to the curriculum and the principal approves, such material may be shown. Vancouver Public Schools parent consent forms must be issued to each student, signed by the parent/guardian/custodian, and returned to school prior to the classroom showing of any PG 13 rated film or video. Students without parental/guardian/custodian permission must be provided alternative assignments.

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1. Films and videos with a film industry rating of G, PG, or PG 13 may be used in district high school classrooms without parent/guardian/custodian notification; and

2. Use of R Rated Videos: Normally R rated material will not be used; however, if the film or video is appropriate to the curriculum and the principal approves, such material may be shown. Vancouver Public Schools parent consent forms must be issued to each student, signed by the parent/guardian/custodian, and returned to school prior to the classroom showing of any R rated film or video. Students without parental/guardian/custodian permission must be provided alternative assignments.

E. Additional guidelines when using film and video

1. Rented films and videos may be used only in a classroom or in a similar setting for the purpose of instruction. Rented films and videos may not be shown for the purpose of entertainment unless a public entertainment fee is paid;

2. Films/videos edited for television must be used as per their original audience rating;

3. Films/videos produced for entertainment purposes that do not have an audience rating must be reviewed and approved by the principal; and

4. The parent consent form must state the teacher's objective for use of the film and note any scenes, language, etc. that may be objectionable.

VII. Citizen Access to View Core Materials

Members of the community are invited to **review any print or digital core instructional materials** in current or proposed use. Such review may be accomplished at the school, in the district office, or online. The review and examination process should be arranged in a way to avoid disrupting the educational program. The review of core materials should be undertaken with the knowledge of district objectives in mind.

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APPROVED:

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Jeff Snell, Superintendent
Vancouver Public Schools

Date

(DRAFT 05-22-25)

Procedure – Library Information and Technology Programs

This procedure guides teacher-librarians and informs the community about the process for selecting, acquiring, evaluating, and maintaining library information and technology program materials. The objective of each program is to implement, support, and enrich the educational program of the district.

I. Library Collection Development

A. To best meet the unique needs of each school, the district will strive to create a library collection based upon an assessment of student and staff needs. This will be accomplished by:

1. Providing resource materials, both curricular and personal for students and faculty;

2. Providing materials that meet the interest, vocabulary, maturity and ability levels of all students;

3. Providing a diversity of materials in the interest of achieving a balance of sources and perspectives;

4. Fostering reading as a lifelong activity through pleasurable exposure to printed and digital materials; and

5. Including materials in the collection because of their academic, literary and/or artistic value and merit.

B. Library Materials and Electronic Resources

Library materials or digital services are those items accessible through the library information and technology program that provide support for an area of the curriculum, information for independent study, or resources for enrichment and recreational interest. Electronic resources include access to electronic documents, databases and websites.

C. Suggestions for Acquisition

Suggestions for acquisition or electronic resources may originate from students, parents, community members and teachers. Library information and technology staff will weigh requests, evaluate materials and select those which fulfill the needs of the instructional program. Teacher-librarians in each school determine final selections.

D. Selection

1. Sources for the selection of materials include but are not limited to:

a) Vendor catalogs, American Historical Fiction, Basic Book Collection for Elementary Grades, the Best in Children's books, Children and Books, Children's Catalog, Elementary School Library Collection, European Historical Fiction and Biography, Guide to Sources in Educational Media, Junior High School Catalog Reference Books For School Libraries, Subject Guide To Children's Books in Print, Subject Index to Books for Intermediate Grades, Subject Index to Books for Primary Grades, and Westinghouse Learning Directory.

b) Current review journals:

i) AASA Science Books and Films;

ii) American Film & Video Association Evaluations;

iii) Kirkus Reviews;

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iv) Media and Methods;

v) School Library Journal;

vi) Bulletin of the Center for Children's Books;

vii) Horn Book;

viii) KLIATT;

ix) VOYA; and

x) Booklist.

E. Library resources should represent a balanced and inclusive collection that serves a variety of purposes, including resources that:

1. Support and are consistent with the general educational goals of the state of Washington and Vancouver Public Schools and the aims and objectives of individual schools and specific courses;

2. Support and are consistent with school library media and information literacy standards established by the American Association of School Librarians as well as content area standards established by the Office of the Superintendent of Public Instruction of the State of Washington;

3. Engage students in developing a love of reading;

4. Meet high standards of quality in factual content and presentation;

5. Contain appropriate subject matter for the age, emotional development, ability level, learning styles, and social development of the students for whom they are selected;

6. Serve the intended purpose, in both physical format and appearance for library materials;

7. Help students gain an awareness of our pluralistic society;

8. Motivate students and staff to examine their own duties, responsibilities, rights, and privileges as participating citizens in our society, and to make informed judgments in their daily lives;

9. Withstand scrutiny based on their strengths rather than be rejected for their weakness;

10. Clarify historical and contemporary forces by presenting and analyzing intergroup tension and conflict objectively, placing emphasis on recognizing and understanding social and economic problems; and

11. Reflect the district's support for equity, inclusion and sense of belonging by providing materials that:

    a) Are non-biased in the portrayal of persons of diverse racial, ethnic, gender and ability backgrounds;

    b) Include contributions of minority groups and women;

    c) Avoid distortion, stereotyping or bias toward any groups of person;

    d) Support character development; and

    e) Acknowledge and affirm students' cultural identities.

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II. Gifts/Donations

Materials donated to the school library will be accepted or declined in accordance with the criteria applied to the purchase of materials.

III. Collection Assessment

A. De-selection (weeding) of outdated and damaged materials is a natural part of the library's life cycle and maintenance of the quality and integrity of the collection. The teacher-librarian will evaluate the library collection on a continuing basis to assure that the collection meets the mission statement and goals of the Vancouver Public Schools.

B. ~~B.~~ Considerations for de-selection

Teacher-librarians will consider the following in deciding what materials to de-select:

1. Whether ~~Currency – T~~the subject matter is out of date or no longer relevant to the instructional program;

2. Whether the ~~Physical Condition – I~~item is worn, soiled, missing pages, antiquated in appearance or unattractive;

3. Whether the item has ~~Not~~ circulated~~ing for~~ within a reasonable amount of time;

4. Whether a newer edition has ~~S~~superseded ~~-~~the item~~by newer editions~~;

5. Whether the materials ~~P~~perpetuate~~s~~ cultural, ethnic, or sexual stereotypes;

6. Whether the materials aren't appropriate for students' reading levels; or Inappropriate reading level; or

7. ~~Unneeded duplication of materials~~Whether the materials contain appropriate subject matter for the age, emotional development, and social development of the students for whom they were selected.

~~7.~~8. Whether there are already multiple copies of an item.~~.~~

C. Requests for Review and Removal ~~Reconsideration~~ of Library Media Materials

When a concern is expressed about library resources, the teacher-librarian will consider both the resident or staff member of the district's right to express an opinion and the principles of intellectual freedom.

1. Request for review: A parent or legal guardian of a student enrolled in the district (a "parent") may submit a written request to review and remove library materials to the applicable teacher-librarian and principal.

2. Seeking resolution: If the parent requests, the school will arrange a meeting with the parent, the principal, and the teacher-librarian to address the parent's concerns and find solutions.

3. Principal's decision: If the issue cannot be resolved, the principal, in consultation with a teacher-librarian, will review the materials and issue a written decision on whether to remove them. The decision must be issued within 30 days of meeting with the parent or within sixty (60) days of receiving the request to review and remove if the parent doesn't request a meeting.

4. Appeal process: If the parent or teacher-librarian disagrees with the principal's decision, they may appeal to the superintendent or designee in writing. The superintendent's or designee's decision is final and cannot be appealed. Once the final decision is made, the same materials may not be reconsidered for at least three (3) years unless the superintendent determines a significant change in

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circumstance arises.

D. The decisions made under this process must comply with RCW 28a.320.233, will be based on the criteria for selecting and de-selecting library materials described in this procedure, and may apply only to the students or students whose parent submitted the request to review and reconsider.

~~1. Informal reconsideration~~

~~Resident or staff member of the district wishing to make a complaint regarding library resources will be asked to direct their complaint to the teacher-librarian. The teacher-librarian will attempt to resolve the issue informally by:~~

~~a) Carefully listening to or reading concerns; and;~~

~~b) Responding in writing to the complainant to convey the decision to retain or not retain the library materials. The written response will include:~~

~~i. Explaining the book selection process, criteria and why the material was selected, and how its inclusion in the collection was guided by the district collection development policy/procedure; and~~

~~ii. Sharing review sources for the item in question.~~

~~2. If the informal process does not resolve the matter, the complainant may submit a formal request for reconsideration of library resources. Library materials in question will remain in the collection until the process is completed and a final decision is made.~~

~~3. Formal reconsideration~~

~~a) The building principal, as well as the director of curriculum, will be informed whenever a resident or staff member of the district submits a *Request for Reconsideration of Library/Media Materials* letter.~~

~~b) The formal process will follow the process required by Procedure 2020 for a written challenge. A copy of the challenged materials process will be furnished to the complainant by the principal with the understanding that the criteria and rationale for reconsideration of library materials differs from classroom/district adopted materials.~~

~~c) When reviewing a challenge to library materials the instructional review committee will:~~

~~i) Examine the request for reconsideration letter;~~

~~ii) Read and evaluate the book/material in question;~~

~~iii) Study thoroughly all materials referred and read available reviews. The general acceptance of the materials should be checked by consulting standard evaluation aids and holdings in other schools;~~

~~iv) Discuss the book/material in the context of the educational program and the audience for which it was selected;~~

~~v) Consider the entire work, rather than extracting passages or parts. Weighing the~~

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~~values and faults against each other and weighing the conflicting opinions based on the materials as a whole; and~~

~~vi) Base the final decision upon the appropriateness of the material for its intended educational use.~~

~~D. The decision of the instructional materials committee may be appealed by a concerned party to the board of directors, by submitting a written request to the office of the superintendent within ten (10) days of receipt of the committee's decision. The purpose of the board of directors' review will be to determine whether the committee applied the appropriate criteria and followed the proper process.~~

~~E. The superintendent will notify the concerned parties of the findings of the board's review.~~

~~F. If the correct criteria and process were followed by the instructional materials committee, the decision of the committee stands. If it is determined they were not followed, the board of directors will determine the outcome of the challenge.~~

~~G. The decision regarding challenged materials will not be subject to reconsideration for a minimum of three (3) years, unless there is a substantive change of circumstances as determined by the superintendent or designee.~~

APPROVED:

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Jeff Snell, Superintendent
Vancouver Public Schools

Date

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Procedure – Electronic Resources and Internet Safety

These procedures are written to support the electronic resources policy of the board of directors and to promote positive and effective digital citizenship among students and staff. Digital citizenship includes the norms of appropriate, responsible, and healthy behavior related to current technology use. Successful, technologically-fluent digital citizens recognize and value the rights, responsibilities, and opportunities of living, learning, and working in an interconnected digital world. They cultivate and manage their digital identity and reputation, and are aware of the permanence of their actions in the digital world. Expectations for student behavior online are no different from face-to-face interactions.

~~**I. Use of Personal Electronic Devices**~~

~~In accordance with all district policies and procedures, students may use personal electronic devices (e.g. laptops, mobile devices and e-readers) to further the educational and research mission of the district. School staff will retain the final authority in deciding when and how students may use personal electronic devices on school grounds and during the school day. Absent a specific and articulated need (e.g. assistive technology), students do not have an absolute right to possess or use personal electronic devices at school.~~

II. Network

A. The district network includes wired and wireless devices and peripheral equipment, files and storage, email and Internet content (blogs, websites, collaboration software, social networking sites, wikis, etc.). The district reserves the right to prioritize the use of, and access to, the network.

B. All use of the network must support education and research and be consistent with the mission of the district.

III. Acceptable Network Use by District Students Include:

A. Creation of files, digital projects, videos, web pages, and podcasts using network resources in support of education and research;

B. Participation in blogs, wikis, bulletin boards, social networking sites and groups, and the creation of content for podcasts, email, and webpages that support education and research;

C. With parental permission, the online publication of original educational material, curriculum-related materials, and student work. Sources outside the classroom or school must be cited appropriately;

D. Staff use of the network for incidental personal use in accordance with all district policies and procedures; and

E. Connection of personal electronic devices (wired or wireless), when authorized, including portable devices with network capabilities, to the district network after checking with the director of informational technology services to confirm that the device is equipped with up-to-date virus software, compatible network card, and is configured properly. Connection of any personal

F. electronic device is subject to all procedures in this document and district policy.

IV. Unacceptable Network Use by District Students Includes but is Not Limited to:

A. Personal gain, commercial solicitation, and compensation of any kind;

B. Actions that result in liability or cost incurred by the district;

C. Downloading, installing and use of games, audio files, video files, games, or other applications (including shareware or freeware) without permission or approval from the director of information technology services;

D. Support for or opposition to ballot measures, candidates, and any other political activity;

E. Hacking, cracking, vandalizing, the introduction of malware, including viruses, worms, Trojan horses, time bombs, and changes to hardware, software, and monitoring tools;

F. Unauthorized access to other district computers, networks, and information systems;

G. Action constituting harassment, intimidation or bullying, including cyberbullying, hate mail, defamation, discriminatory jokes, and remarks. This may also include the manufacture, distribution, or possession of inappropriate digital images;

H. Information posted, sent, or stored online that could endanger others (e.g., bomb construction, drug manufacturing);

I. Accessing, uploading, downloading, storage and distribution of obscene, pornographic, or sexually explicit material;

J. Attaching unauthorized devices to the district network. Any such device may be confiscated; or

K. Any unlawful use of the district network, including but not limited to stalking, blackmail, violation of copyright laws, and fraud.

L. The district will not be responsible for any damages suffered by any user, including but not limited to, loss of data resulting from delays, non-deliveries, mis-deliveries, or service interruptions caused by his/her own negligence or any other errors or omissions. The district will not be responsible for unauthorized financial obligations resulting from the use of, or access to, the district's computer network or the Internet.

V. Internet Safety

Personal information and inappropriate content:

A. Students should not reveal personal information, including a home address and phone number on web sites, blogs, podcasts, videos, social networking sites, wikis, email, or as content on any other electronic medium;

B. Students and staff should not reveal personal information about another individual on any electronic medium without first obtaining permission;

C. No student pictures or names can be published on any public class, school or district website unless the appropriate permission has been obtained according to district policy;

D. If students encounter dangerous or inappropriate information or messages, they should notify the appropriate school authority; and

E. Students should be aware of the persistence of their digital information, including images and social media activity, which may remain on the Internet indefinitely.

VI. Filtering and Monitoring

Filtering software is used to block or filter access to visual depictions that are obscene and all child pornography in accordance with the Children's Internet Protection Act (CIPA). Other objectionable material could be filtered. The determination of what constitutes "other objectionable" material is a local decision.

A. Filtering software is not one hundred percent (100%) effective. While filters make it more difficult for objectionable material to be received or accessed, filters are not a solution in themselves. Every user must take responsibility for their use of the network and Internet and avoid objectionable sites;

B. Any attempts to defeat or bypass the district's Internet filter or conceal Internet activity are prohibited (e.g., proxies, https, special ports, modifications to district browser settings, and any other techniques designed to evade filtering or enable the publication of inappropriate content);

C. Email inconsistent with the educational and research mission of the district will be considered SPAM and blocked from entering district email boxes;

D. The district will provide appropriate adult supervision of Internet use. The first line of defense in controlling access by minors to inappropriate material on the Internet is deliberate and consistent monitoring of student access to district devices;

E. Staff members who supervise students, control electronic equipment, or have occasion to observe student use of said equipment online, must make a reasonable effort to monitor the use of this equipment to assure that student use conforms to the mission and goals of the district

F. Staff must make a reasonable effort to become familiar with the Internet and to monitor, instruct, and assist effectively;

G. The district may monitor student use of the district network, including when accessed on students' personal electronic devices and devices provided by the district, such as laptops, netbooks, and tablets; and

H. The district will provide a procedure for students and staff members to anonymously request access to internet websites blocked by the district's filtering software. The procedure will indicate a timeframe for a designated school official to respond to the request. The requirements of the Children's Internet Protection Act (CIPA) will be considered in evaluation of the request. The district will provide an appeal process for requests that are denied.

VII. Unmonitored Access: Expanded Student Internet Access

A. "Unmonitored access" means a student may utilize technology software that is not available to all students. For example, students with unmonitored access utilize digital programming features, online forums and work-alike groups not associated with or monitored by district staff. However, students who receive unmonitored access are required to use computer applications and programs only as directed and authorized by the classroom teacher. Any use beyond what is directed by the teacher will be considered unauthorized use of district technology and subject to student discipline.

B. The director of information technology must give prior approval for the use of unmonitored student access. Access may be given in limited circumstances to support unique student educational opportunities. Prior to granting a student unmonitored access, parents must receive written notification of the benefits, risks and expectations of unmonitored Internet access. The director of information technology must receive parents' signed acknowledgement of the benefits, risks and expectations, and parents' signed consent to grant unmonitored student access prior to granting a student unmonitored access.

C A student can only utilize unmonitored access consistent with all the district's appropriate use requirements for online behavior, and the student must use the unmonitored access as instructed by the classroom teacher. Failure to comply with the district's acceptable use of technology guidelines, or classroom expectations will result in immediate loss of unmonitored access. In addition, the student will receive appropriate student discipline. High schoolstudents enrolled in video game programming, computer science and engineering courses may be granted unmonitored access to use the following software:

1. Github;
2. Gamemaker;
3. Unityhub;
4. Replit; and
5. Autocad.

D. The director of information technology and the director of career and technical education ("CTE"), based on input from the local CTE advisory committee, will annually review, approve and update the list of software available for unmonitored student access.

VIII. Internet Safety Instruction

All students will be educated about appropriate online behavior, including interacting with other individuals on social networking websites and in chat rooms, and cyberbullying awareness and response.

A. Age appropriate materials will be made available for use across grade levels; and

B. Training on online safety issues and materials implementation will be made available for administration, staff, and families.

IX. Copyright

Downloading, copying, duplicating, and distributing software, music, sound files, movies, images, or other copyrighted materials without the specific written permission of the copyright owner is generally prohibited. However, the duplication and distribution of materials for educational purposes is permitted when such duplication and distribution falls within the Fair Use Doctrine of the United States Copyright Law (Title 17, USC) and content is cited appropriately.

X. Ownership of Work

A. All work completed by employees as part of their employment will be considered property of the district. The district will own any and all rights to such work including any and all derivative works, unless there is a written agreement to the contrary.

B. All work completed by students as part of the regular instructional program is owned by the student as soon as it is created, unless such work is created while the student is acting as an employee of the school system or unless such work has been paid for under a written agreement with the school system. If under an agreement with the district, the work will be considered the property of the district. Staff members must obtain a student's permission prior to distributing the student's work to parties outside the school.

XI. Network Security and Privacy

A. Passwords are the first level of security for a user account. System logins and accounts are to be used only by the authorized owner of the account for authorized district purposes. Students and staff are responsible for all activity on their account and must not share their account password.

B. The following procedures are designed to safeguard network user accounts:

1. Change passwords according to district policy;
2. Do not use another user's account;
3. Do not insert passwords into email or other communications;
4. If you write down your user account password, keep it in a secure location;
5. Do not store passwords in a file without encryption;
6. Do not use the "remember password" feature of Internet browsers; and

C. Lock the screen or log off if leaving the computer.

XII. Student Data is Confidential

District staff must maintain the confidentiality of student data in accordance with the Family Educational Rights and Privacy Act (FERPA).

XIII. No Expectation of Privacy

A. The district provides the network system, email, and Internet access as a tool for education and research in support of the district's mission. The district reserves the right to monitor, inspect, copy, review, and store, without prior notice, information about the content and usage of:

1. The district network, including when accessed on students' personal electronic devices and on devices provided by the district, such as laptops, netbooks, and tablets;

2. User files and disk space utilization;

3. User applications and bandwidth utilization;

4. User document files, folders and electronic communications;

5. Email;

6. Internet access; and

7. Any and all information transmitted or received in connection with network and email use.

B. No student or staff user should have any expectation of privacy when using the district's network. The district reserves the right to disclose any electronic messages to law enforcement officials or third parties as appropriate. All documents are subject to the public records disclosure laws of the State of Washington.

XIV. Educational Applications and Programs

A. Hardware, and all applications, including software, and operating systems must be approved for use prior to purchase and installation according to current technology purchase procedures. Additionally, hardware and all applications, software, and operating systems must be:

1. Currently supported by the manufacturer; and

2. Periodically reviewed to ensure they are still in use, supported by the manufacturer, and patched for vulnerabilities.

B. The district will remove any hardware, application, software, or operating system that does not meet these criteria.

~~A. District staff may request students to download or sign up for applications or programs on the students' personal electronic devices. Such applications and programs are designed to help facilitate lectures, student assessment, communication, and teacher-student feedback, among other things.~~

~~B. Prior to requesting students to download or sign up for educational applications or programs, staff will review "terms of use," "terms of service," and/or "privacy policy" of each application or program to ensure that it will not compromise students' personally identifiable information, safety, and privacy. Staff will also provide notice in writing of potential use of any educational application or program to the appropriate school administrator or IT staff including the~~

~~anticipated purpose of such application or program. Specific expectations of use will be reviewed with students.~~

~~C. Staff should also, as appropriate, provide notice to students' parents/guardians that the staff person has requested that students download or sign up for an application or program, including a brief statement on the purpose of application or program.~~

XV. Archive and Backup

Backup is made of all district email correspondence for purposes of public disclosure and disaster recovery. Barring power outage or intermittent technical issues, staff and student files are backed up on district servers regularly.

XVI. Disciplinary Action

All users of the district's electronic resources are required to comply with the district's policy and procedures and agree to abide by the provisions set forth in the district's user agreement. Violation of any of the conditions of use explained in the district's user agreement, Electronic Resources policy, or in these procedures could be cause for disciplinary action, including suspension or expulsion from school and suspension or revocation of network and computer access privileges.

XVII. Accessibility of Electronic Resources

A. Federal law prohibits people, on the basis of disability (such as seeing and hearing impairments), from being excluded from participation in, being denied the benefits of, or otherwise being subjected to discrimination by the district. To ensure that individuals with disabilities have equal access to district programs, activities, and services, the content and functionality of websites associated with the district should be accessible. Such websites may include, but are not limited to, the district's homepage, teacher websites, district-operated social media pages, and online class lectures.

B. District staff with authority to create or modify website content or functionality associated with the district will take reasonable measures to ensure that such content or functionality is accessible to individuals with disabilities.

APPROVED:

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Jeff Snell, Superintendent Date
Vancouver Public Schools

REVISED Procedure - Nondiscrimination and Affirmative Action

This complaint procedure is adopted in accordance with chapter 392-190 WAC.

I. Complainant

An employee may file a complaint against the district alleging that it has violated anti-discrimination laws. The person filing the complaint is referred to as the "complainant."

II. Examples of Employment Discrimination

Employment discrimination may include, but are not limited to, the following:

A. Unfair treatment based on an employee's protected status, including assignment of duties, opportunities for advancement, conditions of employment, hiring practices, leaves of absence, hours of employment, and assignment of instructional and non-instructional duties.

B. Harassment based on an employee's protected status by supervisors, co-workers, or others in the workplace that is so severe or persistent that it creates a hostile environment.

C. Denial of a reasonable workplace accommodation.

D. Making employment or placement decisions based on stereotypes or assumptions about one's protected status.

III. Informal Complaint

A complainant may bring an informal (i.e., oral) complaint to the district. If that occurs, the compliance officer or their designee will schedule a meeting to discuss the informal complaint and how to resolve the complainant's concerns. Using this informal process does not limit the complainant's right to file a formal complaint and the district will notify the complainant in writing about their right to file a formal complaint. The notice will be in a language the complainant can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act of 1964 for complainants with limited English proficiency.

IV. Formal Complaint

A. A formal complaint must be in writing and describe the specific acts, conditions, or circumstances alleged to violate anti-discrimination laws.

B. A complaint must be filed within one year of the occurrence giving rise to the complaint. The deadline will not be imposed if the complainant was prevented from filing a complaint because (1) the district specifically misrepresented that it had resolved the problem forming the basis of the complaint or (2) the district withheld information it was required to provide under chapter 392-190 WAC.

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C. A complaint may be filed by mail, fax, email, or hand delivery to any district or school administrator or to the compliance officer.

D. Any district or school administrator who receives a formal complaint will promptly notify the compliance officer. Once the compliance officer receives a complaint, they will do the following:

1. Provide the complainant with a copy of Policy 5010 and this procedure in a language they can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act of 1964 for complainants with limited English proficiency.

2. Ensure that the district conducts a prompt and thorough investigation into the allegations in the complaint.

E. In lieu of investigating, the district and the complainant may agree to resolve the complaint. If the complaint is resolved, no further action is necessary.

F. Written response to a formal complaint

1. After completing the investigation, the compliance officer or their designee will give the superintendent a full written report of the complaint and the investigation results.

2. The superintendent or their designee will issue a written response to the complainant within thirty (30) calendar days after the district receives the formal complaint. The thirty-day timeline can be extended if agreed to by the complainant or if exceptional circumstances related to the complaint require an extension. If an extension is needed, the district will notify the complainant in writing of the reasons for the extension and the anticipated response date. The notice will be in a language the complainant can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act of 1964 for complainants with limited English proficiency.

3. The written response must include a summary of the results of the investigation; a finding as to whether the district failed to comply with anti-discrimination laws; notice to the complainant of their right to appeal, including where and to whom the appeal must be filed; and, if the district failed to comply with anti-discrimination laws, the corrective measure deemed necessary to correct the noncompliance. Any corrective measures must be instituted as expeditiously as possible but no later than thirty calendar days after the written response is issued unless otherwise agreed to by the complainant. The written response will be in a language the complainant can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act of 1964 for complainants with limited English proficiency.

4. The district will send a copy of the written response to the Office of the Superintendent of Public Instruction (OSPI) when it sends the response to the complainant.

G. Appeal to the board

1. If a complainant disagrees with the superintendent's written response, they may appeal to the board. The appeal must be in writing and filed with the superintendent within ten (10) calendar days of receiving the written response.

2. The board must issue a written appeal decision within thirty (30) calendar days of receiving

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the appeal unless the complainant agrees otherwise. The board may schedule a meeting to hear from the complainant and district representatives before issuing its decision. If it doesn't schedule a meeting, the board will consider the investigation report, the written response, and any documentation the complainant submits before making its decision.

3. The appeal decision must include notice of the complainant's right to file a complaint with OSPI under WAC 392-190-075. The district will send a copy of the appeal decision to OSPI.

4. The appeal decision will be in a language the complainant can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act of 1964 for complainants with limited English proficiency.

H. Complaint to OSPI

1. If a complainant disagrees with the board's decision, or if the district fails to comply with this procedure, the complainant may file a complaint with OSPI.

2. A complaint must be received by OSPI on or before the twentieth (20th) calendar day following the date upon which the complainant received the board's decision unless OPSI grants an extension for good cause.

3. Complaints may be submitted by mail, fax, email, or hand delivery.

4. A complaint must be in writing and include the following: (1) a description of the specific acts, conditions or circumstances alleged to violate applicable anti-discrimination laws; (2) the name and contact information, including address, of the complainant; (3) the name and address of the district subject to the complaint; (4) a copy of the district's written response and appeal decision, if any; and (5) a proposed resolution of the complaint or relief requested. If the allegations regard a specific student, the complaint must also include the student's name and address and the name of the school and school district the student attends. If the student is homeless, the complaint should include contact information.

5. Upon receipt of a complaint, OSPI may initiate an investigation, which may include conducting an independent on-site review. OSPI may also investigate additional issues related to the complaint that were not included in the initial complaint or appeal to the board.

6. All corrective actions must be completed within the timelines established by OSPI in the written decision unless OSPI grants an extension. If timely compliance is not achieved, OSPI may take action including but not limited to referring the district to appropriate state or federal agencies empowered to order compliance.

7. A complaint may be resolved at any time when, before the completion of the investigation, the district voluntarily agrees to resolve the complaint. OSPI may provide technical assistance and dispute resolution methods to resolve a complaint.

I. Administrative hearing

The complainant or the district may appeal OSPI's written decision by filing a written notice of appeal with OSPI within thirty (30) calendar days of receiving the decision. OSPI will conduct a formal administrative hearing in accordance with the Administrative Procedures Act, chapter 34.05 RCW.

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IX. Mediation

A. The district may offer mediation at any time during the complaint procedure. The purpose of mediation is to offer the complainant and the district an opportunity to resolve disputes and reach an acceptable agreement concerning the complaint using an impartial mediator. The parties may agree to extend the complaint procedure deadlines to pursue mediation.

B. Mediation is voluntary, requires the agreement of both parties, and may be terminated by either party at any time.

C. The mediator must be impartial, may not be an employee of the district, and must not have a personal or professional conflict of interest. A person is not disqualified as a mediator solely because the district pays them to serve as a mediator.

D. If the parties resolve a dispute through mediation, they may execute a legally binding agreement that describes the resolution, states that all discussions that occurred during mediation will remain confidential and may not be used as evidence in any subsequent complaint or civil proceeding, and is signed by the complainant and the district's representative.

X. Supportive and Restorative Measures

Resolution of an informal or a formal complaint of employment discrimination may include providing supportive or restorative measures. Such measures are non-disciplinary, are mutually identified by the employee and the district, and should be designed to restore or preserve access to the work environment, honor the dignity of each employee, and foster a sense of belonging. Supportive or restorative measure may include, but are not limited to, facilitating restorative conversations, periodic check-ins by a supervisor, mutual agreements or restrictions on contact between the parties, and a general statement from a supervisor reviewing the district nondiscrimination policy without identifying the parties.[TDR1]

XI. Recordkeeping

The compliance officer's office will maintain documentation for each complaint received (e.g., the complaint, notices, the investigation report, the written response, the appeal decision, documentation of corrective measures, etc.) for six years.

XII. Resources

District Contact

Janell Ephraim
Janell.ephraim@vansd.org

State Contacts

Superintendent of Public Instruction
Equity and Civil Rights Office
P.O. Box 47200
Olympia, WA 98504-7200
360.725.6162

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Washington State Human Rights Commission
711 South Capitol Way, Suite 402
P.O. Box 42490
Olympia, WA 98504-2490
360.753.6770

Office for Civil Rights
U.S. Department of Education
915 Second Avenue, Room 3310
Seattle, WA 98174
206.607.1600

~~I. Definitions as Used in this Procedure~~

~~A. "Complaint" means a charge alleging explicit acts, conditions, or circumstances, which are in violation of the anti-discrimination laws.~~

~~B. "Complainant" means the person making the complaint.~~

~~C. "Grievance" means a complaint which has been filed by a complainant (a student, employee, or parent) relating to alleged violations of any anti-discrimination laws.~~

~~D. "Parent" means a parent, guardian or person having legal custody of a child. If the student is eighteen (18) years or older, or is legally emancipated, the procedures for the parent in this regulation may be exercised by the student.~~

~~E. "Respondent" means the person alleged to be responsible or who may be responsible for the violation alleged in the complaint.~~

~~II. Nondiscrimination~~

~~A. To ensure fairness and consistency, the following grievance procedure is to be used in the district's relationship with its staff regarding employment problems covered by state and federal equal employment opportunity laws and/or this affirmative action program. Where collective bargaining procedures provide for an alternate method of processing complaints, those procedures will apply. No staff member's status with the district will be adversely affected in any way because the staff member utilized these procedures.~~

~~B. The primary purpose of this procedure is to secure an equitable solution to a justifiable complaint. The following steps shall be taken:~~

~~1. Informal Review Procedures~~

~~When a staff member has an employment concern regarding an equal employment opportunity, he/she shall discuss the issue with his/her immediate supervisor. If the staff member feels he/she cannot approach the supervisor because of the supervisor's involvement in the alleged discrimination, the staff member may directly contact the second level supervisor. The staff member may also ask the affirmative action officer, Title IX officer or the assistant superintendent of human resources to participate in the~~

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~~informal review procedure before pursuing formal procedures. It is intended that informal discussion shall resolve the issue. If the discussion with the immediate supervisor, the second level supervisor, or officer does not resolve the issue, the staff member may proceed to the formal review procedures.~~

~~2. Level I – Formal Review~~

~~a) The complaint must be written, and set forth the specific acts, conditions, or circumstances alleged to be in violation. On receipt of a complaint the executive director of human resources shall provide the complainant with a copy of this procedure in a language the complainant can understand and may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act of 1964.. The executive director of human resources shall investigate the allegations.~~

~~b) The executive director of human resources will provide the superintendent with a written report of the complaint and the results of the investigation. The superintendent or designee shall respond in writing by certified mail or other documented delivery to the complainant and respondent as expeditiously as possible, but in no event later than thirty (30) calendar days following receipt of the written complaint in a language the complainant understands. This time limit may be extended by agreement with the complainant or if exceptional circumstances related to the complaint require an extension of the time limit. If an extension is made, the district will notify the complainant in writing of the reasons for the extension and the anticipated date of the response. The superintendent's or designee's response will be provided in a language the complainant can understand and may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act of 1964.~~

~~c) The written response will include a summary of the results of the investigation, whether the district has failed to comply with the relevant laws or regulations, notice of the complainant's right to appeal to the board of directors, including where and to whom the appeal must be filed, and corrective actions deemed necessary, if any. To appeal, the complainant should file a written request to the superintendent's office within ten calendar days of receiving the decision. The complainant may submit their appeal via email at: vpsboard@vansd.org or via mail to the Vancouver Public Schools Board President at P.O. Box 8937, Vancouver, Washington 98668.~~

~~d) Corrective measures deemed necessary will be instituted as expeditiously as possible, but in no event later than thirty (30) calendar days following the certified mailing or documented delivery of a written response to the respondent and complaining party.~~

~~e) A copy of the superintendent or designee's decision will be provided to the Office of the Superintendent of Public Instruction (OSPI).~~

~~3. Level II – Appeal to Board of Directors~~

~~a) If a complainant remains aggrieved because of the action or inaction of the superintendent, or designee, they may file a written notice of appeal to the board of directors by the tenth (10th) calendar day following:~~

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~~(1) The date upon which the complainant and respondent received the written response; or~~

~~(2) The expiration of the thirty (30) calendar day response period stated in Level I, whichever occurs first.~~

~~b) The board of directors will schedule a hearing and issue its decision by the twentieth (20th) calendar day following the filing of the written notice of appeal, unless otherwise agreed to by the complainant.~~

~~c) Both parties will be allowed to present such witnesses and testimony as the board of directors deems relevant and material. The board of directors will render a written decision following the termination of the hearing and will provide a copy by certified mail or other documented delivery to all parties. The decision of the board will be provided in a language the complainant can understand and may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act of 1964.~~

~~d) The written response will include notice of the complainant's right to appeal to OSPI and where and to whom the appeal must be filed, and a copy of the response will be provided to OSPI.~~

~~4. Level Three - Appeal to OSPI~~

~~a) In the event a complainant charging discrimination, or the respondent remains aggrieved with the decision of the board of directors in connection with any matter which, if established, would constitute a violation, the complainant or respondent may appeal the board of directors' decision to OSPI.~~

~~(1) A notice of appeal must be received by OSPI on or before the twentieth (20th) calendar day following the date upon which the complainant and respondent received written notice of the board of directors' decision unless OSPI grants an extension for good cause.~~

~~(2) A notice of appeal must be in writing in the form required by OSPI and must set forth the facts on which the complaint is based including the specific acts, conditions or circumstances alleged to violate the relevant laws or regulations; the name, address, and contact information for the complainant; the name and address of the district; a copy of the district's complaint and appeal decisions; and a proposed resolution of the complaint. If the allegations regard a specific student, the complaint must include the name, address and contact information for the student and the name of the school and district the student attends.~~

~~5. Level Four - Administrative Hearing~~

~~A complainant or school district that desires to appeal the written decision of the OSPI may file a written notice of appeal with OSPI within thirty (30) calendar days following the date of receipt of that office's written decision. OSPI will conduct a formal administrative hearing in conformance with the Administrative Procedures Act.~~

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~~6. Mediation~~

~~a) At any time during the discrimination complaint procedure the district may, at its own expense, offer mediation. The complainant and the district may agree to extend the discrimination complaint process deadlines to pursue mediation.~~

~~b) The purpose of mediation is to provide both the complainant and the district an opportunity to resolve disputes and reach a mutually acceptable agreement through the use of an impartial mediator. Mediation must be voluntary and requires the mutual agreement of both parties. It may be terminated by either party at any time during the mediation process. It may not be used to deny or delay a complainant's right to utilize the complaint process.~~

~~c) Mediation must be conducted by a qualified and impartial mediator who may not:~~

~~(1) Be an employee of the school district mediating the complaint; or~~

~~(2) Have a personal or professional conflict of interest.~~

~~d) A mediator is not considered an employee of the district solely by serving as mediator.~~

~~e) If the parties reach agreement through mediation, they must execute a legally binding agreement that sets forth the resolution and states that all discussions that occurred during the course of mediation will remain confidential and may not be used as evidence in any subsequent complaint, due process hearing or civil proceeding. The agreement must be signed by the complainant and a district representative who has authority to bind the district.~~

~~7. Preservation of Records~~

~~The files containing copies of all correspondence relative to each complaint communicated to the district and the disposition, including any corrective measures instituted by the district, shall be retained in the Human Resources department for a period of six (6) years.~~

~~III. Affirmative Action~~

~~A. The needs of all people in a pluralistic society must be understood in order to continue to create an employment atmosphere compatible with and receptive to all persons. The following commitments shall ensure that a meaningful educational experience may continue to exist for students and staff alike. The district will:~~

~~1. Make efforts to modify the composition of the future work force in order to work toward a full utilization of aged, persons with disabilities, ethnic minorities, women, and eligible veterans in the various job categories;~~

~~2. Ensure that all applicants and staff are considered on the basis of bona fide job-related qualifications. The purpose of the affirmative action plan is to actively include persons of underutilized classes in the employment process, not to exclude others from it. The district shall continue to emphasize in all recruitment contacts that nondiscrimination is a basic element in the district's personnel procedures;~~

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3. ~~Review all employment procedures and programs to assure that there is no indication of discriminatory practices. Job descriptions for classified staff shall be sent to the Washington Employment Service (Work Source Washington) and other organizations which are recruiting sources for groups that may be under-utilized in the district's work force. Recruitment from colleges and universities shall include institutions with high percentages of students of various ethnic minorities;~~

4. ~~Contract and purchase all goods and services from persons, agencies, vendors, contractors and organizations who agree to comply with the Vancouver Public Schools' Notice of Nondiscrimination;~~

5. ~~Take appropriate action to attract and retain aged, persons with disabilities, ethnic minorities, women, and eligible veterans at all levels and in all segments of the district's workforce. Criteria for selecting staff shall be reviewed regularly to assure that such statements relate directly to the requirements for specific positions. However, pursuant to state law there shall be no preferential employment practices based on race or gender; and~~

6. ~~Upgrade present staff by providing professional development opportunities to assure that individuals of underutilized groups are prepared for positions of new and increased responsibility.~~

B. ~~The district will develop an affirmative action employment plan that includes appropriate provisions designed to eliminate discrimination based on sex, race, creed, religion, color, national origin, honorably discharged veteran or military status, sexual orientation, gender expression, gender identity, the presence of any sensory, mental, or physical disability, or the use of a trained dog guide or service animal by a person with a disability.~~

C. ~~Implementation of the affirmative action plan shall be the responsibility of the superintendent and the assistant superintendent of human resources. Every administrator shall assist in the attainment of the established goals and purposes of this affirmative action plan.~~

D. ~~The district will prepare a workforce analysis in conjunction with each five (5) year update to the district's affirmative action plan.~~

~~IV. Dissemination of the Principles of this Policy and Procedure~~

A. ~~It is the responsibility of the superintendent, or designee, to inform all applicants for employment, all current employees, all employee associations and all Vancouver Public Schools' contractors and subcontractors of its commitment to nondiscrimination and equal employment opportunity.~~

B. ~~As the superintendent's designee, the assistant superintendent of human resources, is responsible for the actions described above and responsible for enacting the affirmative action plan.~~

C. ~~To ensure that others are aware that Vancouver Public Schools is an equal opportunity employer, and to ensure that all persons are fully apprised of Vancouver Public Schools' policy, the following actions will be undertaken.~~

1. ~~Internal Dissemination:~~

a) ~~Board policies and regulations related to nondiscrimination and affirmative action~~

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~~will be available on the district web site and staff portal;~~

~~b) Equal employment opportunity, promotion of staff diversity and cultural competency will be referenced in district correspondence, employment bulletins, and district website;~~

~~c) Notice of nondiscrimination and equal employment opportunities and federal and state posters prohibiting discrimination will be posted at visible locations at all Vancouver Public Schools' work sites;~~

~~d) Upon request, the affirmative action plan will be made available to all members of the board of directors, to all administrators, managers, and supervisors at all district facilities, to employee union representatives, and to any employee upon request; and~~

~~e) The district's commitment to nondiscrimination will be reviewed in new employee orientation and shared at a minimum of every three (3) years through staff training.~~

~~2. External Dissemination:~~

~~a) Board policies and regulations related to nondiscrimination and affirmative action will be available on the district website;~~

~~b) Information about the district's commitment to nondiscrimination will be included on independent contractor contracts; and~~

~~c) All notices of employment opportunities will contain a statement of nondiscrimination and equal employment opportunity; and~~

~~V. Internal Audit and Monitoring System~~

~~A. The superintendent or designee may ask about protected status to the extent required to do so by state and federal laws. Information that reveals the protected status of an individual shall be kept confidential.~~

~~B. The district will evaluate the effectiveness of the nondiscrimination and affirmative action program and report its status to the superintendent annually. Such reports may include recommendations for changes in the affirmative action plan goals. The overall responsibility for monitoring and auditing this policy is assigned to the assistant superintendent of human resources with the support of all administrators.~~

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APPROVED:

_____ _____

Dr. Jeff Snell, Superintendent
Vancouver Public Schools

Date

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Procedure – Capital Assets / Theft Sensitive Assets

Inventory of District Property

A. The district's chief fiscal officer is responsible for inventories of district property.

B. Inventory will be conducted at least once every other fiscal year for all capital assets, except land; infrastructure; buildings; and improvements other than buildings and leasehold improvements. Property records and inventory records will be maintained on land, buildings, and equipment owned by or under the control of Vancouver Public Schools and will be updated at least annually.

C. A theft-sensitive assets inventory will be conducted annually.

D. The individual(s) conducting each inventory will have no direct responsibility for assets subject to the inventory count.

E. District assets will be marked with a unique identification number (e.g. bar code, property tag) and identified as district property. All capital assets and theft-sensitive assets will be identified and marked upon purchase or receipt.

F. When placing a capital asset on the inventory, the following will be recorded:

1. Description of the item;
2. Serial number or other identification number (bar code, tag number, etc.);
3. Source of the asset;
4. Who holds title;
5. Acquisition date;
6. Cost of the asset;
7. Percentage of federal participation in the cost of the property and the federal program charged;
8. Location of the asset;
9. Use and condition of the property; and
10. Ultimate disposition data including the date of disposal and sale price, if applicable. Federally purchased items with a per unit fair market value over ~~Five~~ Ten Thousand Dollars ($~~5~~10,000) must reimburse the federal program proportionately. Disposed items with a per unit fair market value of less than ~~Five~~ Ten Thousand Dollars ($~~5~~10,000) may be retained, sold or otherwise disposed of with no further obligation to the awarding agency.

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G. The district will maintain an inventory identifying theft-sensitive assets.

1. This inventory will be reviewed and updated annually; and

2. Items placed on the theft-sensitive asset inventory will record at a minimum, a description of the item and identification number, location and federal participation, if any.

H. At the conclusion of the physical inventory, the building principals and department administrators will receive a written copy of the inventory that lists all the assets assigned to that site. The inventory will clearly identify all assigned items, including those that were not found, not used, or were in an obviously unserviceable condition.

I. Principals and department administrators are required to attempt to locate items that have been listed as missing. Within twenty-five (25) working days, the principals and department administrators are expected to return a copy of the inventory report to the purchasing department showing which items have been located and which are still missing.

J. The missing items will be consolidated on a report of potential write-offs. The chief fiscal officer or designee will review the report and approve the total amount of assets to be written off. Only write-off items will be removed from the capital assets inventory system.

K. Items not being used or in an obviously unserviceable condition will be identified during inventory and the appropriate department will be contacted to pick up the item(s) for auction or disposal.

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APPROVED:

_____ _____

~~Dr. Steven Webb~~Jeff Snell, Superintendent Date
Vancouver Public Schools